

UPSC GS-II POLITY

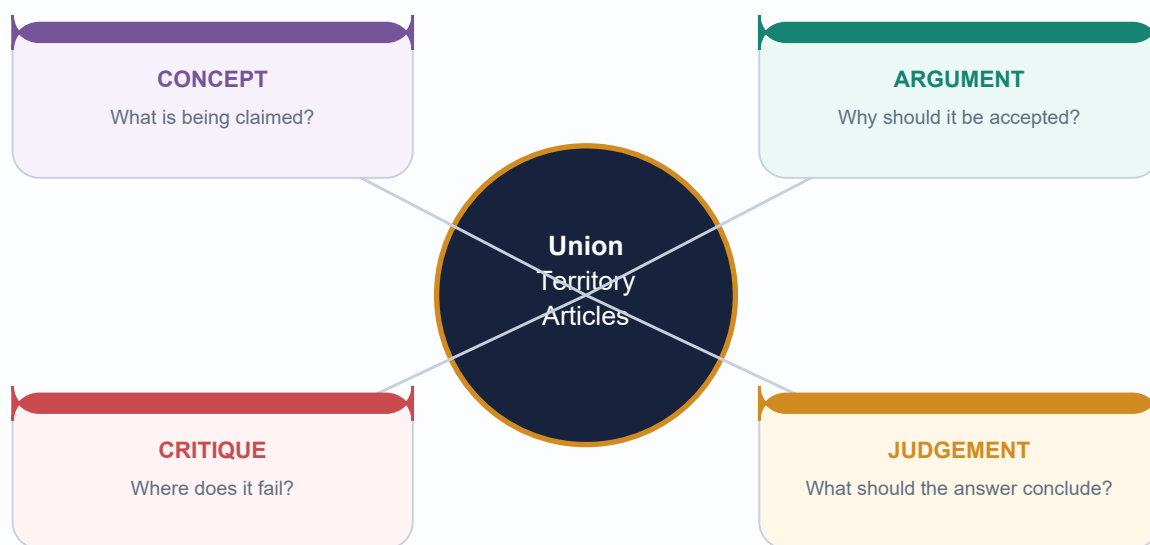
Union & its Territory — Articles 1 to 4

Integrated Basic + Advanced Course

10 deep-learning modules | Article 1 to the 2019-2020 UT count

Visual maps, timelines, comparisons, UPSC traps and Mains frameworks

Grounded in M. Laxmikanth, Indian Polity (Sixth Revised Edition), Ch. 5 + verified official updates



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

M1. Article 1 — 'Union of States' & the Territory of India

GS-II Indian
Polity

NEWS TRIGGER

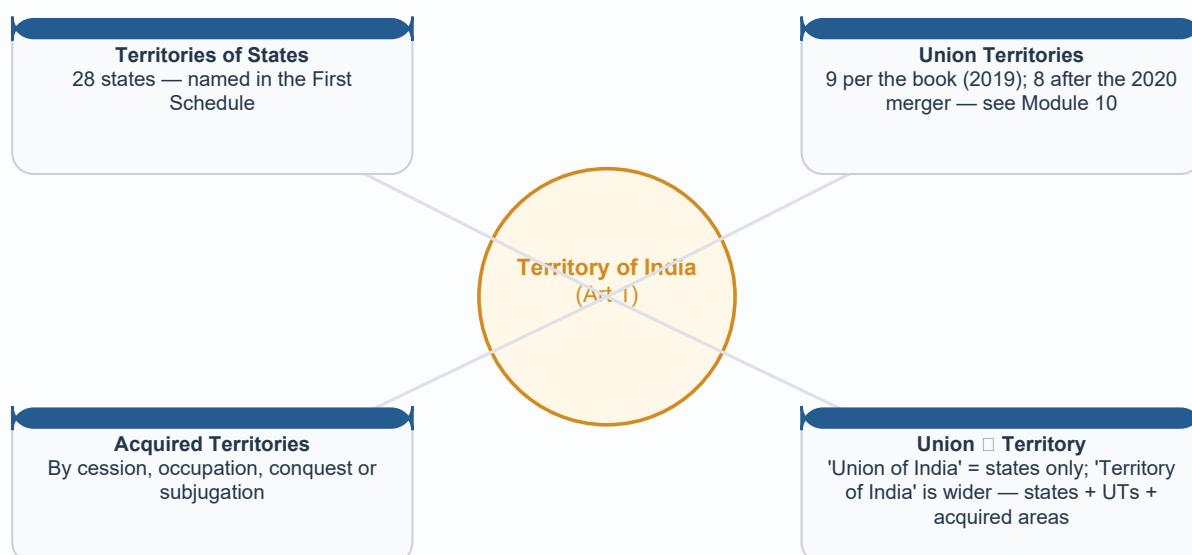
The abrogation of Article 370 (2019) and the J&K to 2-UTs split remains live in current debate — demands for restoration of statehood to J&K keep Articles 1-4 relevant to today's news cycle.

INTRO & ORIGIN

Article 1 describes 'India, that is Bharat' as a 'Union of States' — not a 'Federation'. It deals with two things: (i) the name of the country and (ii) the type of polity. The dual name India/Bharat was a Constituent Assembly compromise.

Ambedkar explained why 'Union' was chosen over 'Federation': (i) the Indian federation is not the result of an agreement among states (unlike the USA); (ii) states have no right to secede from it — it is indestructible.

TERRITORY OF INDIA — THREE CATEGORIES



KEY DATA

Aspect	Union of India	Territory of India
Composition	Only the States	States + Union Territories + acquired territories
Breadth	Narrower term	Wider term (Art 1 uses this sense)
Special provisions	Part XXI (Art 371-371J) for 12 states with special status	5th & 6th Schedules cover scheduled/tribal areas
Change of extent	Changes as states merge/reorganise	Changes further when territory is acquired

STATIC THEORY

- India (a sovereign state) can acquire foreign territory by cession (treaty/purchase/gift/lease/plebiscite), occupation, conquest, or subjugation.
- Special provisions under Part XXI (Art 371-371J) apply to 12 states; the 5th and 6th Schedules separately govern scheduled areas and tribal areas.
- The dual name compromise (India/Bharat) and the 'Union' vs 'Federation' choice were both deliberate Constituent Assembly decisions, not drafting accidents.

MEMORY HOOK

Union □ Territory — Union = States only; Territory = States + UTs + Acquired Territories.

MUST-KNOW FACTS

1. Ambedkar's rationale for 'Union': not born of an agreement between states; no right to secede.
2. 'Territory of India' (Art 1) is the wider term; 'Union of India' is narrower (states only).
3. Sovereign acquisition of foreign territory: cession, occupation, conquest, or subjugation.

MAINS ANGLE

Does the phrase 'Union of States' function as a safeguard of the federal bargain, or as a textual tool that enables centralising control over the map of India?

STUDY LINK

Constituent Assembly's India/Bharat naming compromise — see Historical Background module set.

HIGH

M2. Article 2 vs Article 3 — The Core Distinction □

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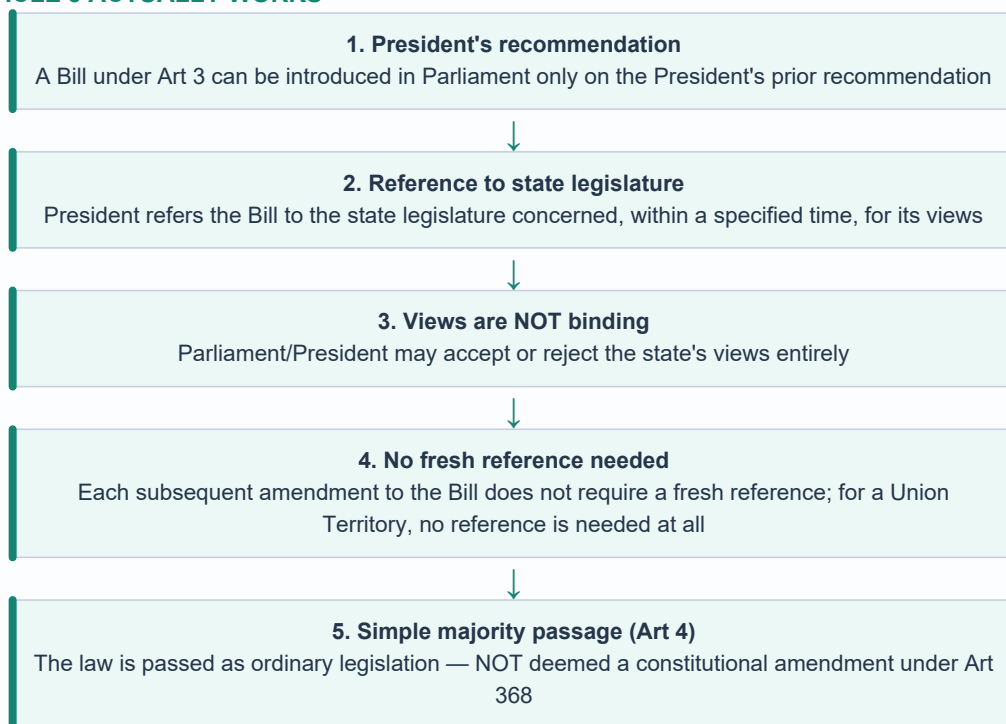
INTRO & ORIGIN

Articles 2 and 3 are the most confused pair in this topic — both look like 'state-making' powers, but they operate on entirely different territory.

KEY DATA

	Article 2	Article 3
Deals with	Admission/establishment of NEW states (not already part of the Union)	Reorganisation of EXISTING states (internal readjustment)
Powers	(a) admit existing states; (b) establish new states	Form / increase / diminish / alter boundary / alter name of a state
State consent	Not applicable (territory outside the Union)	Not required — Parliament only obtains the state legislature's views, not its consent
Amending process	Simple majority (Art 4) — not an Art 368 amendment	Simple majority (Art 4) — not an Art 368 amendment

HOW ARTICLE 3 ACTUALLY WORKS



MEMORY HOOK

'2 = New (outside the Union), 3 = Old (inside the Union).'

MUST-KNOW FACTS

1. Parliament is not bound by the state legislature's views on an Art 3 Bill.
2. No fresh reference is needed for each amendment to the Bill; for a UT, no reference at all.
3. Because of this, India is 'an indestructible union of destructible states' — contrast the USA, an 'indestructible union of indestructible states'.

UPSC TRAPS

WRONG: Article 2 is about reorganising existing states.

CORRECT: Article 2 = admitting/establishing NEW states; Article 3 = reorganising EXISTING states.

WRONG: State consent is required before Parliament can alter its boundaries.

CORRECT: Only the state legislature's views are obtained — Parliament is not bound by them.

WRONG: Reorganising a state needs a constitutional amendment.

CORRECT: Article 4 says such laws need only a simple majority — outside the Article 368 process.

MAINS ANGLE

Article 3 and the fragility of state boundaries — does the President-recommendation safeguard cooperative federalism, or does it entrench central dominance over the states' map?

STUDY LINK

HIGH

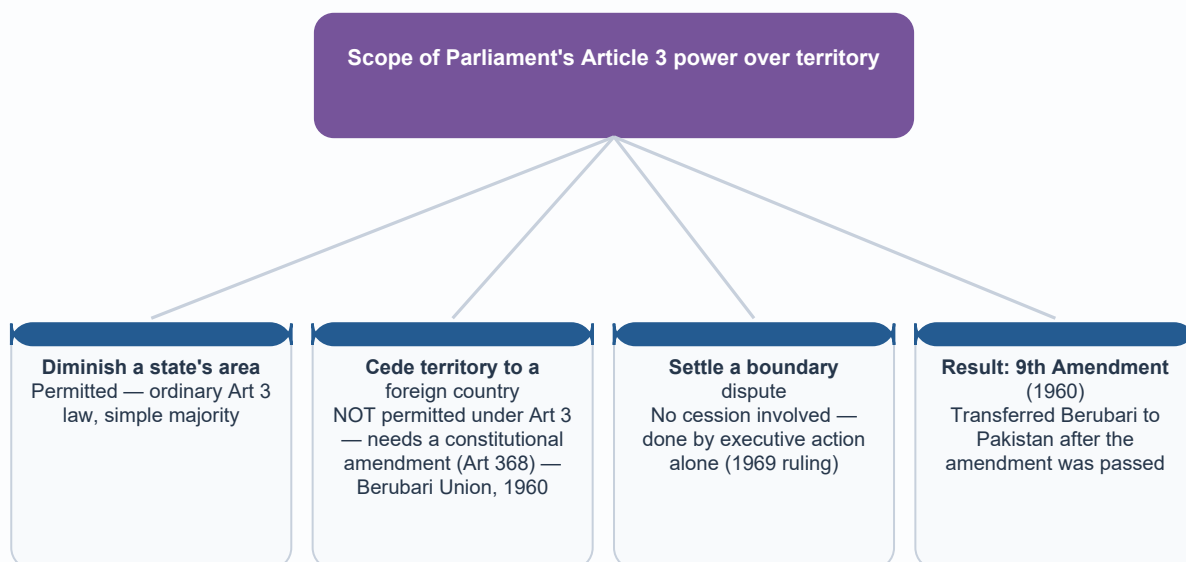
M3. Cession of Territory — the Berubari Doctrine □

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INTRO & ORIGIN

Article 3 lets Parliament diminish a state's area — but does that power stretch to giving Indian territory away to a foreign country? The Berubari reference settled it.

CAN PARLIAMENT ALTER INDIA'S TERRITORY UNDER ARTICLE 3?



STATIC THEORY

- Berubari Union case (1960, Presidential reference under Art 143): the Supreme Court held that Article 3's power to 'diminish' a state's area does NOT include ceding Indian territory to a foreign country — cession needs a constitutional amendment.
- This led directly to the 9th Amendment Act, 1960, which transferred Berubari to Pakistan.
- A 1969 ruling clarified that merely settling a boundary dispute (no cession) does not need any constitutional amendment — it can be done by executive action.

MEMORY HOOK

Diminish = Art 3 (simple majority); Cede to a foreign country = Art 368 amendment (Berubari).

MUST-KNOW FACTS

1. Berubari Union (1960): cession of territory to a foreign state needs an Art 368 amendment, not Art 3.
2. 9th Amendment Act, 1960 gave effect to the Berubari transfer to Pakistan.
3. 1969 ruling: a mere boundary-dispute settlement (no cession) = executive action, no amendment needed.

UPSC TRAPS

WRONG: Ceding Indian territory to a foreign country can be done under Article 3.

CORRECT: It needs a full constitutional amendment under Article 368 — settled in Berubari (1960).

HIGH

M4. Integration of Princely States & the Reorganisation Commissions □

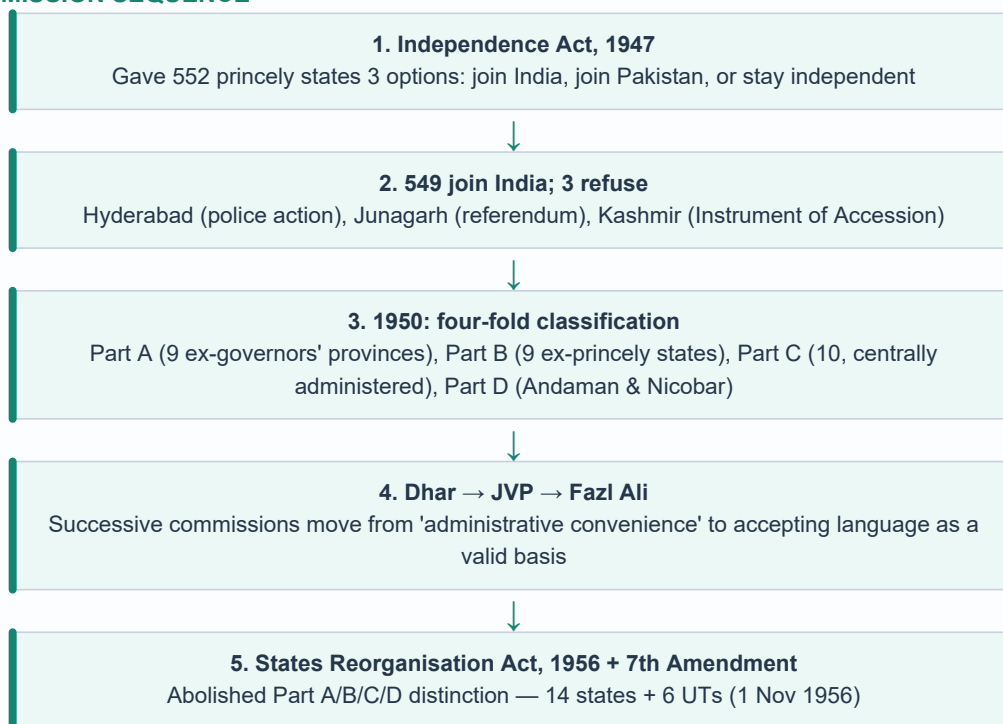
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INTRO & ORIGIN

Before the map of India could be redrawn on linguistic lines, it first had to be assembled at all — from British India plus 552 nominally independent princely states.

KEY DATA

Body	Year	Recommendation
Dhar Commission (S.K. Dhar)	1948	Reorganise states on administrative convenience, not language
JVP Committee (Nehru, Patel, Pattabhi Sitaramayya)	1948-49	Rejected language as the basis for reorganisation
Fazl Ali Commission (Fazl Ali, K.M. Panikkar, H.N. Kunzru)	1953-55	Accepted language, but rejected 'one language-one state'

THE COMMISSION SEQUENCE**MEMORY HOOK**

'Dhar Just Fell' = Dhar → JVP → Fazl Ali (the order of the three commissions).

MUST-KNOW FACTS

- 552 princely states in all; 549 joined India; 3 holdouts — Hyderabad, Junagarh, Kashmir.
- First linguistic state = Andhra (October 1953), after Potti Sriramulu's 56-day hunger strike and death.
- Fazl Ali's four factors for reorganisation: unity/security, linguistic-cultural homogeneity, financial/economic/administrative viability, and welfare planning.
- States Reorganisation Act 1956 + 7th Amendment: 14 states and 6 Union Territories from 1 Nov 1956.

UPSC TRAPS

- WRONG:** The first linguistic state was Maharashtra.
- CORRECT:** It was Andhra (1953), formed after Potti Sriramulu's fast.
- WRONG:** The Fazl Ali Commission endorsed 'one language-one state'.
- CORRECT:** It accepted language as a factor but explicitly rejected that formula.

MAINS ANGLE

Linguistic reorganisation of states — did it strengthen or fragment India's national unity?

STUDY LINK

HIGH

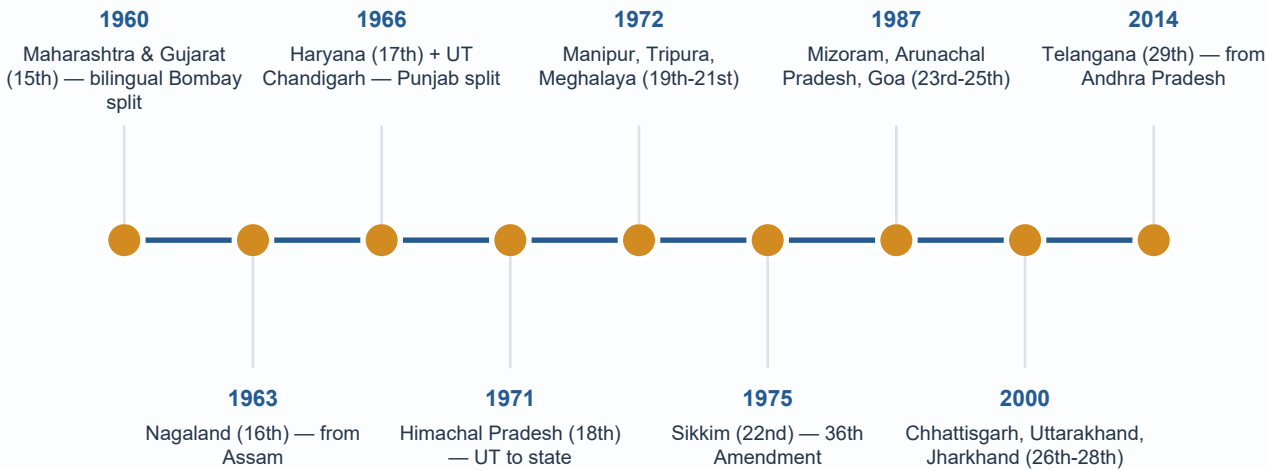
M5. New States Since 1956 — the Sequence (Prelims Gold) □

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INTRO & ORIGIN

After the 1956 reorganisation settled the linguistic map broadly, the state count kept climbing — 14 states in 1956 to 29 by 2014. The sequence and origin state of each is a recurring Prelims trap.

STATE FORMATION TIMELINE, 1960-2014



KEY DATA

Year	State (Union number)	Carved From
1960	Maharashtra & Gujarat (15th)	Bilingual Bombay state split
1963	Nagaland (16th)	Assam (Naga Hills-Tuensang)
1966	Haryana (17th) + UT Chandigarh + HP hills	Punjab (Shah Commission)
1971	Himachal Pradesh (18th)	Union Territory upgraded to state
1972	Manipur (19th), Tripura (20th), Meghalaya (21st)	North-East reorganisation; Mizoram & Arunachal became UTs
1975	Sikkim (22nd)	36th Amendment (was 'associate state' via 35th Amdt, Art 2-A + 10th Schedule)
1987	Mizoram (23rd), Arunachal Pradesh (24th), Goa (25th)	Mizo Peace Accord 1986; Goa from UT
2000	Chhattisgarh (26th), Uttarakhand (27th), Jharkhand (28th)	MP, UP, Bihar
2014	Telangana (29th)	Andhra Pradesh (AP Reorganisation Act 2014)

MUST-KNOW FACTS

1. Sikkim's 22nd-state status came via the 36th Amendment (1975); it was first an 'associate state' under the 35th Amendment (Art 2-A + 10th Schedule, later repealed).
2. The 1966 Punjab reorganisation (Shah Commission) created Haryana AND the UT of Chandigarh, and transferred hill areas to Himachal Pradesh.
3. Telangana (2014) is the most recent new state — carved from Andhra Pradesh.

MAINS ANGLE

Contemporary demands for new/smaller states — administrative efficiency versus regional-identity logic; how should Article 3 be exercised responsibly?

STUDY LINK**HIGH****M9. J&K Reorganisation (2019)** □GS-II Indian
Polity**NEWS TRIGGER**

Article 370's abrogation (2019) and the resulting UT split remain a live political and constitutional debate, including demands for restoration of statehood to J&K.

INTRO & ORIGIN

Jammu & Kashmir was, until 2019, the one state with its own separate constitution under Article 370 — a special-status arrangement unwound in a single legislative sequence.

J&K'S CONSTITUTIONAL TRANSITION, 2019**J&K Reorganisation, 2019**

Pre-2019 position J&K had its own separate constitution under Article 370	Presidential Order (2019) Extended the full Constitution of India to J&K — Article 370 rendered inoperative, but still present in the text
J&K Reorganisation Act, 2019 Split the state into two Union Territories	Result UT of Jammu & Kashmir + UT of Ladakh (Ladakh = Kargil + Leh)

MUST-KNOW FACTS

1. The J&K Reorganisation Act 2019 split the erstwhile state into two Union Territories: Jammu & Kashmir, and Ladakh (comprising Kargil and Leh).
2. Following this, the book's 2019 count stood at 28 states and 9 Union Territories.
3. Article 370 remains in the constitutional text but was rendered inoperative by the 2019 Presidential Order.

MAINS ANGLE

The 2019 J&K reorganisation and the ongoing debate over restoration of statehood — balancing national integration with democratic representation for a Union Territory.

STUDY LINK

HIGH

M10. Current Count (2020 Update) & Consolidated UPSC Traps

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NEWS TRIGGER

□ In January 2020, the UTs of Dadra & Nagar Haveli and Daman & Diu were merged into a single UT — 'Dadra and Nagar Haveli and Daman and Diu' — via the 2019 Merger Act. The present count is 28 states and 8 Union Territories (the book, written before the merger, still lists 9 UTs). Always state 8 UTs for exams dated post-2020.

KEY DATA

Snapshot Year	States	Union Territories
Per book (2019)	28	9
Current (post-Jan 2020)	28	8 (after DNH + Daman & Diu merger)

MUST-KNOW FACTS

1. Present count: 28 states, 8 Union Territories — remember to update the book's '9 UTs' figure.
2. The merger of Dadra & Nagar Haveli with Daman & Diu (Jan 2020) is the reason for the drop from 9 to 8 UTs.

UPSC TRAPS

WRONG: India currently has 9 Union Territories.

CORRECT: 8 UTs — after the Jan 2020 merger of Dadra & Nagar Haveli with Daman & Diu.

WRONG: States have a right to secede from the Union.

CORRECT: No — India is an 'indestructible union', per Ambedkar.

WRONG: State consent is required for reorganisation under Article 3.

CORRECT: Not required — Parliament is not bound by the state legislature's views.

WRONG: Reorganisation under Articles 2/3 needs a constitutional amendment.

CORRECT: Simple majority under Article 4 — outside the Article 368 process.

WRONG: Territory can be ceded to a foreign country under Article 3.

CORRECT: Needs an Article 368 constitutional amendment — settled in Berubari (1960).

WRONG: The first linguistic state was Maharashtra.

CORRECT: Andhra (1953), after Potti Sriramulu's fast.

WRONG: The Fazl Ali Commission endorsed 'one language-one state'.

CORRECT: It accepted language as a factor but rejected that specific formula.

MAINS ANGLE

Demand for new/smaller states today (e.g., statehood for J&K) — weighing administrative-efficiency logic against regional and cultural-identity logic.

STUDY LINK

Citizenship (Art 5-11) and Fundamental Rights modules build directly on this territorial/statehood foundation — see the companion Session-Level PDFs.

MEDIUM UPSC RELEVANCE

MEDIUM

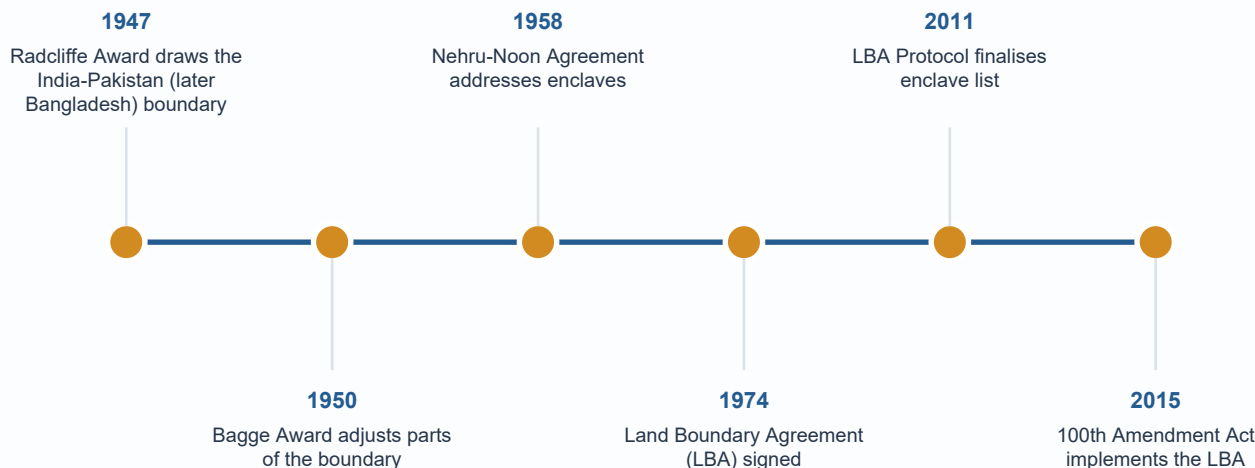
M6. Exchange of Territories with Bangladesh — the 100th Amendment

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INTRO & ORIGIN

The India-Bangladesh land boundary was a colonial-era mess of enclaves; it took nearly seven decades and a constitutional amendment to fully resolve it.

FROM RADCLIFFE (1947) TO THE 100TH AMENDMENT (2015)



STATIC THEORY

- The 100th Amendment Act, 2015 implemented the Land Boundary Agreement (LBA): India transferred 111 enclaves to Bangladesh and received 51 enclaves in return.
- It modified the First Schedule for the states of Assam, West Bengal, Meghalaya, and Tripura.
- Background sequence: Radcliffe Award (1947) → Bagge Award (1950) → Nehru-Noon Agreement (1958) → LBA (1974) → 2011 Protocol → 100th Amendment (2015).

MEMORY HOOK

111 enclaves OUT to Bangladesh, 51 enclaves IN to India — 100th Amendment, 2015.

MUST-KNOW FACTS

1. 100th Amendment Act, 2015 is the constitutional vehicle that gave effect to the LBA.
2. First Schedule states affected: Assam, West Bengal, Meghalaya, Tripura.

MEDIUM

M7. Union Territories Created via Constitutional Amendments

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INTRO & ORIGIN

Three former colonial enclaves became Union Territories through specific constitutional amendments, each with a different colonial power and route.

KEY DATA

Territory	Prior Status	Route	Amendment
Dadra & Nagar Haveli	Portuguese enclave	Merged as a UT	10th Amendment, 1961
Goa, Daman & Diu	Portuguese colony	Police action (1961); Goa later became a state (1987)	12th Amendment, 1962
Puducherry	French enclave	Merged as a UT	14th Amendment, 1962

MUST-KNOW FACTS

1. Dadra & Nagar Haveli became a UT via the 10th Amendment (1961) — Portuguese origin.
2. Goa, Daman & Diu became a UT via the 12th Amendment (1962), following 1961 police action; Goa alone achieved statehood in 1987.
3. Puducherry (French origin) became a UT via the 14th Amendment (1962).

MEDIUM

M8. Change of Names — States and Union Territories

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INTRO & ORIGIN

Several states and one Union Territory have been renamed since 1950 — a recurring 'match the old and new name' Prelims question.

KEY DATA

Old Name	New Name	Year / Amendment
United Provinces	Uttar Pradesh	1950 (first renamed state)
Madras	Tamil Nadu	1969
Mysore	Karnataka	1973
Laccadive, Minicoy & Amindivi Islands	Lakshadweep	1973
Delhi	NCT of Delhi	69th Amendment, 1991
Uttaranchal	Uttarakhand	2006
Pondicherry	Puducherry	2006
Orissa	Odisha	2011

MEMORY HOOK

First renamed state: United Provinces → Uttar Pradesh (1950).

MUST-KNOW FACTS

1. United Provinces was the FIRST state to be renamed — became Uttar Pradesh in 1950.
2. Delhi's rename to 'NCT of Delhi' came through the 69th Amendment (1991), tied to its special governance structure.

End of Register Notes — UPSC Agent / Copilot CLI